



CHAPTER vi.

An Act to confer further powers upon the Bristol General Cemetery Company and for other purposes. A.D. 1926.
[16th June 1926.]

WHEREAS the Bristol General Cemetery Company (in this Act called "the Company") were incorporated by the Bristol Cemetery Act 1837 (in this Act called "the Act of 1837") and under the powers of that Act purchased lands at Arno's Vale then near to and now within the city of Bristol and constructed a cemetery thereon :

And whereas by the Bristol Cemetery Act 1880 and the Bristol Cemetery Act 1891 the Company were authorised to acquire additional lands and to enlarge their said cemetery and further powers were conferred upon the Company :

And whereas it is expedient that the Company should be empowered to erect and maintain a crematorium for the cremation of human remains and that other provisions should be made as are in this Act contained :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this

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present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1. This Act may be cited as the Bristol Cemetery Act 1926 and this Act and the Bristol Cemetery Acts 1837 to 1891 may be cited together as the Bristol Cemetery Acts 1837 to 1926.

Power to
establish
crema-
torium.

2.—(1) The Company may set apart a site for and build provide fit up equip and maintain a crematorium proper and sufficient for the cremation of human remains on the following lands (that is to say) :—

A piece of land belonging or reputed to belong to the Company situate in the Arno's Vale cemetery of the Company in the city of Bristol being in part the site of and in part adjoining the north-western side of the Free Church mortuary chapel in the said cemetery.

(2) The Company may erect and build adjoining to or in connection with any crematorium constructed under the powers of this Act a convenient and suitable chapel for the reception of the dead immediately previous to cremation and for the purpose of performing burial services therein together with such porches gardens colonnades columbaria or niches for the disposal of ashes and other buildings matters and things for such purposes as the Company may think proper.

(3) (a) No cremation of human remains shall take place in any crematorium of the Company until the plans thereof have been approved by the Minister of Health and the Company shall have certified to the Secretary of State that such crematorium has been completed is built in accordance with such plans and is properly equipped for the purpose of the disposal of human remains by burning.

(b) Every cremation of human remains in any crematorium of the Company shall take place in accordance with the provisions of sections 7 8 and 10 of the Cremation Act 1902 and any regulations made under that Act and those sections shall apply accordingly as though they were included in this Act with the necessary modifications.

(4) The Company may demand and take such reasonable charges or fees for the cremation of any

human remains in such crematorium as they think fit and such charges or fees shall be deemed to be a debt due to the Company from the estate of the deceased. A.D. 1926.

(5) The Company may apply to the purposes of this Act any funds or moneys which they now have or may hereafter have in their hands or any moneys which they have power to raise by shares or stock or by mortgage or debenture stock and which may not be required for the purposes for which the Company were authorised to raise or borrow the same.

3.—(1) Section 66 (Treasurer &c. not to issue money without an order) of the Act of 1837 shall be read and construed as if two at least of the directors were referred to therein instead of three at least of the directors. Amend-
ments of
Act of 1837.

(2) The provisions of section 97 (For preventing nuisances in the cemetery) of the Act of 1837 shall be read and construed as if the words "or cremating" were inserted therein after the word "interring."

(3) The Company shall pay to any such incumbent as is referred to in section 28 (Compensation to incumbents for loss of fees) of the Act of 1837 as amended by section 12 of the Bristol Cemetery Act 1891 the same fee on the cremation at any crematorium of the Company of the body of any such person as is referred to in the said sections as would have been payable to such incumbent under those sections on the interment of such body within any consecrated part of any cemetery of the Company.

4. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 or in any Act relating to the Company the general annual meeting of the Company shall be held in each year in the month of August or September or at such other time as the directors of the Company may from time to time appoint and the Bristol Cemetery Acts 1837 to 1891 shall be read and construed accordingly and as if any reference to any particular month in relation to the holding of any general or annual or annual general meeting contained in those Acts were omitted therefrom and it shall not be obligatory to hold half-yearly general meetings of the Company or for the Company or the directors of Annual
general
meeting.

A.D. 1926. the Company to cause accounts to be made up or balanced half-yearly.

As to meet-
ings of
Company.

5.—(1) Any meeting of the Company whether ordinary or extraordinary may be convened by notice delivered at or sent by post to the registered address or other known address of each proprietor of the Company Provided that the notice if delivered shall be delivered at such address as aforesaid not less than six clear days or if sent by post shall be prepaid and posted not less than seven clear days before the date of the meeting In proving that any such notice has been sent by post it shall be sufficient to prove that the notice was properly addressed and put into the post and prepaid not later than the time hereby prescribed.

(2) Every such notice of an extraordinary meeting shall specify the purpose for which such meeting is called.

(3) All general or extraordinary meetings of the Company may be adjourned from time to time and from place to place as shall be found expedient.

(4) At every ordinary and extraordinary meeting of the Company some one of the directors of the Company present and if no director shall be present then some one of the proprietors present to be elected at the meeting shall preside as chairman.

Quorum of
general
meetings.

6. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be five shareholders present in person or by proxy holding in the aggregate not less than one-twentieth of the issued capital of the Company.

Directors
holding
office under
or contract-
ing with
Company.

7. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting such office or place of trust or profit or becoming interested in such contract:

Provided that in the case of his being or becoming interested in any contract with the Company whether

such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors of the Company at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

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8. The following sections of the Act of 1837 are hereby repealed (that is to say):—

Repeal of
certain sec-
tions of Act
of 1837.

Section 57 (First and other general meetings of the Company);

Section 58 (General or special meetings to consist of at least ten persons possessed of not less than 100 shares);

Section 61 (Notice of meetings how to be given);

Section 73 (No person holding office to be a director);

Section 75 (Directors contracting for works &c. after election disqualified);

Section 94 (For compelling witnesses to attend);

Section 95 (Directors empowered to grant releases to witnesses);

Section 98 (Recovery and application of penalties);

Section 99 (Damages and charges in case of dispute to be settled by justices of the peace);

Section 100 (Justices may proceed by summons for recovery of penalties);

Section 101 (For securing offenders whose names and places of abode are unknown);

Section 102 (Distress not unlawful for want of form);

Section 103 (Persons aggrieved may appeal to the quarter sessions);

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- Section 104 (Costs payable by the Company may be recovered by distress on the goods of the Company);
- Section 105 (Forms of information conviction and warrant of distress);
- Section 106 (Proceedings not to be quashed for want of form);
- Section 107 (Limitation of actions);
- Section 108 (Plaintiff not to recover after tender of amends);
- Section 109 (General power to justices to administer oaths);
- Section 110 (Persons giving false evidence to be prosecuted);
- Section 111 (Persons making false declaration to be guilty of a misdemeanour).

Costs of
Act.

9. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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